

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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OSIRIS ARIAS ESPINOZA,

Plaintiff

- against -

**THE CITY OF NEW YORK, and
POLICE OFFICER MICHAEL DMITRIEV
(Shield# 007245),**

Defendants.

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Index No. _____

Purchased _____

Plaintiff designates The Bronx
County as the place of trial

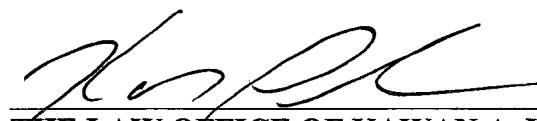
The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York
April 14, 2022



THE LAW OFFICE OF KAWAN A. LOVELACE

By: Kawan A. Lovelace, Esq.
Attorney for Plaintiff
6831 Dartmouth Street, Suite 2
Forest Hills, New York 11375
(718) 640-4872

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****=====X
OSIRIS ARIAS ESPINOZA****Plaintiff,****Index No.
Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER MICHAEL DMITRIEV
(Shield# 007245),****Defendants.**
=====X

Plaintiff OSIRIS ARIAS ESPINOZA, by his attorneys THE LAW OFFICE OF KAWAN A. LOVELACE, by KAWAN A. LOVELACE, ESQ., principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff OSIRIS ARIAS ESPINOZA was a resident of Bronx County in the City and State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant POLICE OFFICER MICHAEL DMITRIEV, Shield No. 007245 (P.O. DMITRIEV) was and is a police officer employed by Defendants.

BACKGROUND

5. On June 16, 2018, without cause or provocation, Defendants, including P.O. DMITRIEV, a Police Officer with Defendant NEW YORK CITY POLICE DEPARTMENT, intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Controlled Substance in the 3rd Degree and related offenses.
6. On June 16, 2018, at approximately 7:20 p.m., in the vicinity of 1980 Belmont Avenue in Bronx County, State of New York, New York City Police Officers, including P.O. DMITRIEV, intentionally handcuffed Plaintiff and placed Plaintiff under arrest without just cause or provocation, and with reckless and negligent disregard for the truth.
7. On June 17, 2018, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff was commenced.
8. Plaintiff was unlawfully detained for approximately twenty-four (24) hours until he was released after his arraignment on June 17, 2018.
9. Plaintiff was maliciously prosecuted and had to defend against false charges until the criminal matter was terminated in favor of Plaintiff, in that all charges against Plaintiff were dismissed, upon information and belief, on or about April 2, 2021.

PROCEDURAL POSTURE

10. On April 23, 2021, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the

claim arose, and the items of damage and injuries sustained so far as was then determinable.

11. More than thirty days have elapsed since service of said notice, prior to the commencement of this action, and defendant CITY has failed to pay or adjust this claim.
12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
13. A 50-H hearing has been held.
14. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

15. Paragraphs 1-14 are incorporated by reference as though fully set forth herein.
16. In arresting Plaintiff, the Defendants acted with malice and lacked probable cause to arrest Plaintiff.
17. Upon information and belief, on or about June 17, 2018, and from that time until the dismissal of charges on or about April 2, 2021, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent person, without any probable cause whatsoever, by filing or causing a felony complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.
18. The Defendants, their agents, servants and employees, including P.O. DMITRIEV, failed to take reasonable steps to stop the prosecution of Plaintiff

and instead, maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

19. The commencement of these criminal proceedings was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

20. The criminal matter was terminated in Plaintiff's favor in that all charges pending against Plaintiff were dismissed and sealed upon the application of the District Attorney on April 2, 2021.

21. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of property, loss of wages and employment, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiff demands judgment against the Defendant, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorney's fees and costs for bringing this case, and punitive damages.

Dated: Queens, New York
April 14, 2022

Yours, etc.,

THE LAW OFFICE OF KAWAN A. LOVELACE



By: Kawan A. Lovelace, Esq.

Attorney for Plaintiff

6831 Dartmouth Street, Suite 2

Forest Hills, NY 11375

(718) 640-4872

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****Index No.**

Purchased _____

-----X
OSIRIS ARIAS ESPINOZA,**VERIFICATION**

Plaintiff,

-against-

**THE CITY OF NEW YORK
POLICE OFFICER MICHAEL DMITRIEV
(Shield# 007245),**Defendants.
-----X

I, **KAWAN A. LOVELACE**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Queens, NY
April 14, 2022


KAWAN A. LOVELACE, ESQ.